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July 27, 2018					
FEDERAL MARITIME COMMISSION					

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DOCKET NO. 18-04

FALCONE GLOBAL SOLUTIONS, LLC

v.

**MAURICE WARD NETWORKS, LTD. d/b/a MAURICE WARD GROUP;
MAURICE WARD & CO., BV.; and MAURICE WARD & CO., S.R.O.**

ORDER DENYING MOTION FOR MORE DEFINITE STATEMENT

On June 19, 2018, complainant Falcone Global Solutions, LLC (“Falcone”) commenced this proceeding against respondents Maurice Ward Networks, Ltd.; Maurice Ward & Co., BV; and Maurice Ward & Co., S.R.O. (collectively “Ward”) by filing a verified complaint (“Complaint”). On June 27, 2018, the Commission issued a notice of filing of complaint and assignment for this proceeding. On July 12, 2018, Ward filed a motion for a more definite statement (“Motion”). On July 19, 2018, Falcone filed its response (“Opposition”). On July 24, 2018, Ward filed a reply in support of its motion (“Reply”).

Ward asserts that the three respondents are separate corporate entities, only two of the entities have been providing service to Falcone, and there is no basis to pierce the corporate veil. Motion at 2-6. Ward states that the “complete failure to identify or explain the role of Maurice Ward & Co., S.R.O. in the underlying transaction” requires Complainant “to provide a more specific statement.” Motion at 6.

Falcone argues that the complaint satisfies the pleading requirements and is not vague or ambiguous and that the motion is a premature attempt to seek discovery and argue the case on the merits. Opposition at 2-6. Falcone claims that Respondents hold themselves out as related branches of one umbrella organization that all operate under one FMC license held by Maurice Ward & Co., S.R.O. Opposition at 1-2.

Commission Rules provide that a respondent may respond to a complaint by filing a motion for more definite statement.

If a pleading (including a complaint, counterclaim, crossclaim, or third-party complaint filed pursuant to § 502.62) to which a responsive pleading is permitted is so vague or ambiguous that a party cannot reasonably prepare a response, the party may move for a more definite statement before filing a responsive pleading. The motion must be filed within 15 days of the pleading and must point out the defects complained of and the details desired. If the motion is granted and the order of the presiding officer is not obeyed within 10 days after service of the order or within such time as the presiding officer sets, the presiding officer may strike the pleading to which the motion was directed or issue any other appropriate order. If the motion is denied, the time for responding to the pleading must be extended to a date 10 days after service of the notice of denial.

46 C.F.R. § 502.67.

Commission Rule 67 is substantially the same as Federal Rule 12(e), which states: “A party may move for a more definite statement of a pleading to which a responsive pleading is allowed but which is so vague or ambiguous that the party cannot reasonably prepare a response.” Fed. R. Civ. P. 12(e). It is appropriate to be guided by federal court interpretations of this rule when considering a motion for more definite statement under the Commission rule.

Rule 12(e) is designed to prevent unintelligibility in complaints in order for a party to interpose a responsive pleading. An underlying aim of the Federal Rules is “to discourage motions to compel more definite complaints and to encourage the use of discovery procedures to apprise the parties of the basis for the claims made in the pleadings.” Accordingly, motions pursuant to Fed. R. Civ. P. 12(e) “should not be granted unless the complaint is so excessively vague and ambiguous as to be unintelligible and as to prejudice the defendant seriously in attempting to answer it. The Rule is designed to remedy unintelligible pleadings, not to correct for lack of detail.”

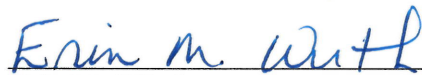
Leviton Mfg. Co. v. Reeve, 942 F. Supp. 2d 244, 269 (E.D.N.Y. 2013) (citations omitted); *see also Potts v. Howard Univ.*, 269 F.R.D. 40, 42 (D.D.C. 2010).

The ten-page complaint filed in this proceeding includes allegations regarding the parties, jurisdiction, statement of facts, violations of the Shipping Act, injury, and a prayer for relief. Complaint at 1-10. The complaint attaches numerous documents in support of the claim. The complaint alleges that Maurice Ward & Co., S.R.O. (“MWSRO”) is a “limited liability company domiciled in the Czech Republic” which operates as a “foreign-based, unlicensed Non-Vessel Operating Common Carrier Ocean Transportation Intermediary” which is “registered with the FMC.” Complaint at 2. In addition, the complaint specifically alleges that “sometime after the nonnegotiable Sea Waybills were issued, MWG and/or MWBV or MWSRO altered them into negotiable Bills of Lading with respect to 53 of the 87 containers.” Complaint at 7.

The complaint provides fair notice of the claims and the grounds upon which they rest. “[T]he test of a complaint’s sufficiency simply is whether the document’s allegations are detailed and informative enough to enable the defendant to respond.” 5 Charles Alan Wright & Arthur R. Miller, *Federal Practice & Procedure Civ. 3d* § 1215 (2004). Falcone’s complaint is not so excessively vague and ambiguous as to be unintelligible. In addition, the complaint is not a “confused and rambling narrative of charges and conclusions concerning numerous persons, organizations and agencies” as was the case in *Cheeks v. Fort Myer Constr. Corp.*, 71 F. Supp. 3d 163, 169 (D.D.C. 2014) (quoting *Brown v. Califano*, 75 F.R.D. 497, 499 (D.D.C. 1977)). Moreover, Complainant may need to conduct discovery to determine the role played in the transportation at issue by each of the Respondents.

Upon consideration of Respondents’ motion for a more definite statement, the response thereto, and the record herein, and for the reasons stated above, it is hereby

ORDERED that Respondents’ motion be **DENIED**. On or before August 10, 2018, Respondents shall file and serve their verified answer to the complaint. On or before August 27, 2018, the parties shall file the joint status report with proposed schedule required by the initial order issued on June 27, 2018. The parties should email courtesy copies of all filings to judges@fmc.gov in addition to submitting the filings to the Office of the Secretary.


Erin M. Wirth
Administrative Law Judge